

File No.: EXP202202270

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 11, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against KUGELCHEN PROPIERTIES, S.L. with NIF B90256892 (hereinafter, the defendant).

The reasons on which the complaint is based are as follows:

The complainant has a parking space in a parking lot.

The company concessionaire for the operation of the parking lot is the defendant, and the complainant has requested that it not process their data.

The complainant states in the request sent to the defendant that they expressly and voluntarily provided their personal and banking data to the previous concessionaire of the aforementioned parking lot to cover the parking expenses.

In the document, the complainant requests the new concessionaire, the defendant, the following:

- 1.- To delete from its files any personal data that it holds.
- 2.- To refrain from presenting any invoice for collection through its financial institution with issuer KUGELCHEN PROPIERTIES SL.

Along with their complaint, the complainant provides a response letter from the defendant dated December 14, 2021, in which the defendant informs them that it will delete their data from the batch of invoices issued, but informs them that if they wish to use the space, they must pay the corresponding amount monthly.

Despite all of the above, invoices are again sent to the bank, as the complainant provides the invoices for January and February 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on February 23, 2022, the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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On April 20, 2022, a response letter was received by this Agency indicating the following:

“1. The request from A.A.A. to be removed from the batch of invoices issued by Kugelchen Properties occurred on December 14, 2021, at 11:26 (attached document), with a response from the company on the same day at 18:12, informing them that their data would be removed from the bank invoices for January, and they were urged to formalize the monthly payments via transfer.

2. After processing the manual deletion of the data from the batch through the Banco Santander Empresas digital platform, the request was considered closed.

3. On February 3, with the payment deadlines for January having expired, Kugelchen Properties requested the monthly payment from A.A.A. via email, as they were listed in the database as ‘payment by transfer’ and had not received that amount through this payment method.

This email was responded to by the complainant alleging that in January an invoice was issued to them, and ten minutes later, they claimed that on February 1, the monthly payment had also been charged.

Following this assertion and the company's surprise at having deleted their data from the batch, the necessary checks were carried out, and due to an error, of which the company is unaware whether it was technical or human, it apologized to the complainant and proceeded with the definitive deletion.

However, it should be noted that the company was unaware of this unfortunate error, as had it been known, no amount would have been claimed from the complainant, considering them up to date with the corresponding monthly payments.

4. As a result of this incident, a new protocol for the deletion of data from the batch of invoices has been established, which is currently applied to avoid errors, regardless of their origin. This protocol is outlined below in the Report on adopted measures.”

In this report on the “new protocol for the deletion of data from the batch of invoices,” 8 guidelines are included to follow when a user requests to unsubscribe as the holder of a bank invoice for the direct debit of the parking space rental payment: User request; Reception and inclusion in “Modifications”; Transfer to management; Review and verification; Second check; Final check; Final review of issued invoices; and Contingency plan.

THIRD: On April 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was accepted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU)

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2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

From the complaint filed as well as the response to the transfer of the complaint and the documentation attached to these documents, the following facts are established:

1. The complaining party communicated to the responding party their request to be removed from the direct debit for the payment of the garage rental, dated 14/12/2021, as stated by the complaining party in their complaint and as acknowledged by the responding party in their response to the transfer.
2. The responding party issued a monthly direct debit for the payment of the invoices for the garage corresponding to the months of January and February 2022, as acknowledged by the responding party in their response to the transfer of the complaint. The responding party expresses that the previous events were due to an error, the nature of which they do not know whether it was technical or human, without providing any documentation to justify this assertion regarding the existence of an error. Furthermore, it is noted that to prevent this error from occurring again, a new protocol for data deletion of the invoice batch was developed, providing a document called “Report on Adopted Measures,” although the date of preparation of the said report is not indicated, nor is the person who prepared it identified, and it is not signed by anyone.

However, no document is provided indicating to whom this report was communicated and by what means; they are repeatedly requested to clarify such aspects on September 9, 2022, and February 3, 2023.

On February 8, 2023, a response to the reiteration of the request was entered into the General Registry of the AEPD, in which the responding party states:

“That they attach the supporting document from the Municipal Management of Urbanism and Environment of the City Council of Seville, by which Kugelchen Properties SL obtains the concession for the operation and management of the parking located at ***ADDRESS.1, by which it subrogates all rights and obligations of the previous concessionaire, Matahacas SL, having to respect all existing contractual relationships up to that date, among which are the contracts acquired with the residents of the parking, as was the case of A.A.A.

As there was no prior database, Kugelchen attempts to contact the residents through a notice on each vehicle requesting the verification and registration of each resident, without obtaining a response in this case.

Likewise, it informs that the batch issued by the previous company, Matahacas SL, will be subrogated

to the current assignee, informing the residents at the security booth of the bank ownership certificate, as well as the supporting document of the concession.

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The mechanisms provided for the payment of the fee arising from the right to use the parking spaces are carried out by bank remittance through an annual receipt. Subsequently, the receipt of transfers has been allowed, prior communication with Kugelchen.

In this case, A.A.A. was included in said payment remittance from which Kugelchen subrogated, and once the resident requested to be removed, their request was processed, but a computer error caused that change not to be saved, despite having been reviewed.

Until the detection of the issue concerning A.A.A., the established protocol was to submit a request for removal of the receipt in the monthly remittance the month prior to its issuance in writing via email.

This receipt was removed electronically by the staff responsible for issuing the remittance and verified once the new monthly payment was configured.

On February 3, and with the payment deadlines for January having expired, Kugelchen Properties requested the monthly payment from A.A.A. via email, as they appeared in the database as 'payment by transfer' and had not received that amount through this payment method. This email was responded to by the claimant alleging that a receipt was issued in January and, ten minutes later, claimed that on February 1, the monthly payment was also charged. Following this assertion and the company's surprise at having removed their data from the remittance, the relevant checks were carried out, and since there had been an error, of which the company is unaware whether it was computer or human, it conveyed its apologies to the claimant and proceeded with the definitive removal.

It should be noted that the company was unaware of this unfortunate error, as otherwise, no amount would have been claimed from the claimant, considering them up to date with the corresponding monthly payments. As a result of this incident, a new protocol for the removal of data from the receipt remittance was established, which is currently applied to avoid errors, regardless of their origin. This protocol is outlined below in the "Report on adopted measures."

Along with this response document, the following relevant documentation is provided by the responding party:

- It provides a document certifying the Municipal Management of Urbanism and Environment of the City Council of Seville, by which Kugelchen Properties SL obtains the concession for the operation and management of the parking located at ***ADDRESS.

FIFTH: On March 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the responding party for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified according to the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the responding party.

Article 64.2.f) of the LPACAP - a provision of which the responding party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the responding party has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following

proven facts in the present procedure,

PROVEN FACTS

FIRST: On December 14, 2021, the right of cancellation was exercised by the claimant against the responding party.

However, until March 2022, the responding party continued to process the banking data of the claimant, specifically during the months of January and February 2022, without addressing the request for the deletion of their personal data until that date.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data, indicating the following:

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"1. The processing shall only be lawful if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The infringement of Article 6 of the GDPR is classified in Article 83.5 a) of the GDPR, which states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

Article 72.1 b) of the LOPDGDD states that "in accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following violations shall be considered very serious and shall be subject to a three-year limitation period:

- b) The processing of personal data without any of the conditions for lawful processing set out in Article 6 of Regulation (EU) 2016/679."

III

In the present case, the complainant notified the respondent of their request to be removed from the

receipt mailing on December 14, 2021, and the respondent communicated to the complainant that their data would be removed from the bank receipts for the month of January on the same date, as acknowledged by both the complainant and the respondent in the writings and documentation attached to the preliminary investigation proceedings.

However, although the respondent has since corrected this, they continued to process the complainant's bank data during the months of January and February 2022, as they continued to bill until February 2022.

Therefore, this Agency considers that, in accordance with the available evidence, the respondent would be violating Article 6 of the GDPR, because the respondent continued to process the complainant's bank data despite the complainant having requested the cessation of such processing by the respondent.

IV

Article 58.2 of the GDPR provides as follows: "Each supervisory authority shall have all of the following corrective powers:

- d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;
- i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

V

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to scale the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Article 83.2 of the GDPR states that:

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;

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- b) the intent or negligence in the infringement;

- c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

- e) any prior infringement committed by the data controller or processor;

- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

- g) the categories of personal data affected by the infringement;

- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

- i) when the measures indicated in Article 58(2) have previously been ordered against the data controller or processor in relation to the same matter, compliance with those measures;

- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the

financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In this case, the intentionality and negligence of the respondent entity have been taken into account as an aggravating factor, according to Article 83.2(b) of the GDPR, since the respondent continued for two months with the processing of the banking data of the claimant, despite being aware of the claimant's request for withdrawal.

For all these reasons, it is considered that the sanction to be imposed would be €2,000 for the infringement of Article 6.1 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on KUGELCHEN PROPIERTIES, S.L., with NIF B90256892, a fine of €2,000 (two thousand euros) for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to KUGELCHEN PROPIERTIES, S.L.

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THIRD: To inform the sanctioned party that they must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day

following the notification of this resolution, it will consider the provisional suspension to be concluded.
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